

Kishan Kumar vs The State & Anr on 9 November, 2022

Author: Sudhir Kumar Jain

Bench: Sudhir Kumar Jain

\$~17

*

+

IN THE HIGH COURT OF DELHI AT NEW DELHI
CRL.M.C. 894/2019
KISHAN KUMAR

Through: Petitioner in person

versus

THE STATE & ANR

Through: Mr. Hitesh Vali, APP wi
Akanksha Sharma, Advoca
with SI Bharat Singh, P
Colony
R-2 in person

CORAM:

HON'BLE MR. JUSTICE SUDHIR KUMAR JAIN
ORDER

% 09.11.2022

1. The present petition is filed under section 482 Cr.P.C for quashing of FIR bearing no.529/2015 dated 05.08.2015 registered under sections 498A/506/ IPC at P.S. Sunlight Colony.
2. The petitioner no.1 and the respondent no.2 got married on 17.02.2022 at New Delhi according to Hindu Rites and Ceremonies and due to matrimonial differences they have started to live separately with effect from 20.03.2014 and out of their marriage two sons, namely, Kartikey and Piyush were born and at present son, namely Kartikey is in the custody of the petitioner and the son, namely, Piyush is in the custody of the respondent no.2.
3. The respondent no.2 filed a written complaint before CAW Cell, P.S. Srinivasपुरi, New Delhi on 05.08.2015 which was culminated into registration of FIR bearing no. 529/2015 registered under sections 498A/506 IPC, wherein the petitioner was implicated.
4. The petitioner and the respondent no.2 are identified by Investigating Officer, SI Bharat Singh and the respective counsel. The charge-sheet has already been filed after completion of investigation and the trial is stated to be pending before the concerned Court of Metropolitan Magistrate (Mahila Court),South East, Saket.
5. The petitioner also filed a petition under section 9 of Hindu Marriage Act, 1955 titled as Krishan

Kumar V. Sapna bearing HMA no.61/2017 which was referred to Counselling Cell, Family Courts, Dwarka for Settlement.

6. The petitioner and the respondent no.2 vide Settlement Deed dated 04.05.2018 have settled their disputes and they have agreed to dissolve their marriage as per section 13(B) of Hindu Marriage Act, 1955.

7. The petitioner has agreed to pay Rs.3,00,000/- to the respondent no.2 towards full and final settlement of her claims/legal entitlements (past, present and future) arising out of marriage between the petitioner and the respondent no.2 including permanent alimony/maintenance/dowry articles /istridhan etc. and other miscellaneous and legal expenses and maintenance of minor child, namely, Piyush as per the scheduled as mentioned in the scheduled of the Settlement.

8. The petitioner has already paid Rs.2,50,000/- to the respondent no.2 which is acknowledged by the respondent no.2.

9. The petitioner has delivered a demand draft of amounting to Rs.50,000/- bearing no. 192827 dated 07.11.2022 issued by Punjab & Sind Bank toward the balance settled amount which is accepted by the respondent no.2.

10. The petitioner and the respondent no.2 stated that they have settled their disputes amicably without any fear, force and coercion and their marriage is already dissolved by decree of divorce vide judgement dated 24.01.2019 bearing HMA no.3363/2018 titled as Krishan Kumar and Sapna passed by the Court of Shri B. R. Kedia, Principal Judge, South- West, District Family Courts, Dwarka, New Delhi as such they do not have any objection if the present petition is allowed and FIR bearing no. 529/2015 dated 05.08.2015 registered under sections 498A/506 IPC at P.S. Sunlight Colony is quashed alongwith consequential proceedings including judicial proceedings.

11. The Additional Public Prosecutor stated that as the petitioner no.1 and the respondent no.2 have already settled their disputes as such he does not have any objection, if the FIR bearing no. 529/2015 dated 05.08.2015 registered under sections 498A/506 IPC at P.S. Sunlight Colony, Delhi is quashed. The Additional Public Prosecutor expressed concerned regarding minor child, namely, Piyush in view of the judgment titled as Ganesh v. Sudhir Kumar Shrivastava and Ors. (2020) 20 SCC 787, and stated that the respondent no.2 can settle her claims relating to maintenance/permanent alimony/istridhan with the petitioner and but she could not give up the rights which vests and shall be vesting in favour of one minor child, namely, Piyush relating to maintenance and other issues.

12. The respondent no.2 has already settled pending disputes with the petitioners and already received settled amount. The marriage between the petitioner no.1 and the respondent no.2 is already dissolved. No useful purpose shall be served if proceedings arising out of FIR bearing no. 529/2015 allowed to be continued. Accordingly, FIR bearing no. 529/2015 dated 05.08.2015 registered under sections 498A/506 IPC at P.S. Sunlight Colony, Delhi is quashed alongwith all consequential proceedings including judicial proceedings. However, it is made clear that the

Settlement Deed dated 04.05.2018 and the present proceeding pertaining to the quashing of FIR bearing no.529/2015 shall not affect in any manner any right vested or shall be vesting including the maintenance/inheritance and other issues in favour of one minor child, namely, Piyush in terms of the judgment titled as Ganesh v. Sudhir Kumar Shrivastava and Ors. (2020) 20 SCC 787).

13. Accordingly the petition alongwith pending applications, if any, stands disposed of.

SUDHIR KUMAR JAIN, J NOVEMBER 9, 2022/j/m